

24STCV33275 24STCV33275

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Case Number: 24STCV33275 Hearing Date: September 11, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

11, 2026

CASE NAME: Volort,

LLC, et al. v. Robert Yepremian

CASE NO.: 24STCV33275

MOTION

FOR SUMMARY JUDGMENT

MOVING PARTY: Plaintiffs

Volort, LLC, Shin Ho Kim, and Gena Soon Yoon

RESPONDING PARTY(S): Defendant Robert Yepremian

REQUESTED RELIEF:

1. An

order granting summary judgment on all causes of action in the SAC in Plaintiffs' favor.

TENTATIVE RULING:

1. Motion

for summary judgment is DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 17, 2024, Plaintiffs Volort, LLC (Volort), Shin Ho Kim (Kim), and Gena Soon Yoon (Yoon) (sometimes collectively Plaintiffs) filed a complaint against Defendant Robert Yepremian (Defendant) with three causes of action for: (1) breach of contract; (2) breach of the implied covenant of good faith and fair dealing; and (3) unfair business practices.

According to the complaint, Plaintiffs leased commercial property located at 3620 Foothill Blvd., Glendale, CA 91214 (the Premises) to Defendant to operate a dry-cleaning and tailoring business. Plaintiffs allege that Defendant was repeatedly in default of the lease and remain in possession of the Premises without paying back rent or current rent.

On January 28, 2025, Plaintiffs filed a first amended complaint with the same causes of action.

On March 18, 2025, Plaintiffs filed the operative second amended complaint (SAC) pursuant to stipulation with the same causes of action.

On April 17, 2025, Defendant filed a motion to strike portions of the SAC which the court GRANTED as to the punitive damages allegations and prayer for relief only.

On August 27, 2025, Defendant filed an answer.

On June 2, 2026, Plaintiffs filed the instant motion for summary judgment. On August 20, 2026, Defendant filed an opposition. On August 28, 2026, Plaintiffs filed a reply.

LEGAL STANDARD:

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, fn. omitted (Aguilar).)

“A plaintiff . . . has met [their] burden of showing that there is no defense to a cause of action if that party has proven each element of the cause of action entitling [them] to judgment on the cause of action.”

(Code Civ. Proc. (CCP) § 437c subd. (p)(1).) “Once the plaintiff . . . has met that burden, the burden shifts to the defendant . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) They must

“set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or defense thereto.” (Ibid.)

A triable issue of material fact exists where “the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar, supra, at p. 850.)

The opposing party on a motion for summary judgment is under no evidentiary burden to produce rebuttal evidence until the moving party meets his or her initial movant's burden. (Binder v. Aetna Life Insurance Company (1999) 75 Cal.App.4th 832, 840.) Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The pleadings dictate the scope of a motion for summary judgment. “The materiality of a disputed fact is measured by the pleadings [citations], which ‘set the boundaries of the issues to be resolved at summary judgment.’ [Citations.]” (Hutton v. Fid. Nat'l Title Co. (2013) 213 Cal. App. 4th 486, 493.)

ANALYSIS:

Plaintiffs contend summary judgment is proper because Defendant admitted non-payment and late payment of rent in a separate unlawful detainer action which conclusively establishes the elements of Plaintiffs' claims in this case.[1]

They add that withholding rent, promising to pay and not paying constitute bad faith and unlawful/unfair business practices.

Defendant argues that Plaintiffs' defective separate statement warrants denial, Plaintiffs fail to meet their initial burden, the unlawful detainer judgments do not have res judicata/collateral estoppel effect, triable issues of material fact exist on all claims, and triable issues as to defenses exist.

Plaintiffs reply that the unlawful detainer judgments are final rulings, Defendant should be sanctioned for representing otherwise, and they established their claims.

As a threshold matter, the court addresses the separate statement issue.

"The supporting papers [to a summary judgment motion] shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed." (CCP § 437c(b)(1).) "Each of the material facts stated shall be followed by a reference to the supporting evidence." (Ibid.) "The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (Ibid.)

The separate statement must separately identify: "[e]ach cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion;" and "[e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1350(d)(1)(A)-(B).) "The statement must state in numerical sequence the undisputed material in the first column followed by the evidence that establishes those undisputed facts in the same column." (Id. at subd. (d)(3).) "Citation to the evidence in support of each fact must include reference to the exhibit, title, page, and line numbers." (Ibid.)

Here, neither party presented a compliant separate statement. Plaintiffs' separate statement failed to cite to evidence, is not separated by claim or issue, and includes argument. Defendant's opposing separate statement includes argument and evidentiary objections that do not belong there. However, Plaintiffs' separate statement is more problematic since they, as the moving party, bear the initial burden to show no triable issues of material fact.

Even considering the separate statement, Plaintiffs still fail to meet their initial burden. Critically, Plaintiffs lack evidence supporting their material facts to their claims. As an example, Plaintiffs state that Defendant “repeated[ly] promise[d] to pay rent and cure arrears while continuing to occupy the Premises” - a material fact.[2] (Plaintiff’s Separate Statement No. 46.) Plaintiffs cite no evidence in support. Without evidence, Plaintiffs cannot meet their burden. (See CCP § 437c(b)(1) [“Each of the material facts stated shall be followed by a reference to the supporting evidence.”]) Summary judgment is therefore inappropriate.[3]

Accordingly, the court DENIES Plaintiffs’ motion for summary judgment.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for summary judgment is DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 11, 2026 _____ Upinder S. Kalra

Judge of the Superior Court

[1]The prior two cases are 23GDCV00376 and 25NNCV00278.

[2] To what claim, the court is left to guess since Plaintiffs did not specify which facts support which claims.

[3]

The court declines to develop the remaining arguments.